



Tax-Free Savings Account Application



Invesco Tax-Free Savings Account Application

All capitalized terms used in the application form and not otherwise defined herein shall have the meanings given to such terms in the Trust Agreement.
Social Insurance Number and Date of Birth requested below are required to register this Account with the Canada Revenue Agency

TFSA Before you Begin

- To avoid potential delays, please fill out this application in its entirety
- For investment instructions, fund number takes priority over fund name if there is a discrepancy
- All systematic programs (PAC, SWP and SSP) require five business days notice for initial set up, and two business days notice prior to the requested run date for changes
- U.S. dollar investments are not allowed for registered plans
- When specific investment instructions are not received, monies will be invested in the default fund as specified in the Invesco Simplified Prospectus
- Current legislation stipulates that the holder must be 18 years of age to open a TFSA

Part 1: Account Holder information (MANDATORY)

☐ New ☐ Existing Invesco Tax-Free Savings Account (TFSA) no _____ Dealer cross-reference account no. _____
☐ Mr. ☐ Mrs. ☐ Miss ☐ Ms. ☐ Dr. Language preference: ☐ English ☐ French

First name _____ Last name _____ Date of Birth _____
 Address _____ City _____ Prov. _____ Postal code _____
 Telephone _____ Email address _____ Social Insurance Number (MANDATORY) _____
 By providing your email address you agree to be contacted by Invesco Canada via email to provide enrollment instructions to receive statements and other tax related documents electronically, where feasible.

Part 2: Dealer information (MANDATORY)

Dealer name _____ Representative name _____
 Dealer/ Representative code _____ Authorized signature/Representative signature _____

Part 3: Investment information

Purchase: ☐ Cheque enclosed ☐ Banking Information provided in Part 8 below
☐ Incoming transfer from an external TFSA
☐ Transfer all of the property in the plan or ☐ \$ _____ from existing Invesco Account no. _____ to this TFSA. Please maintain the same investments unless otherwise specified below.

Fund		Purchase		
Fund no.	Fund name	Amount ☐ \$ or ☐ %	Sales Commission (%)	Wire order no.

Part 4: Pre-authorized chequing plan (PAC plan)

Start date: _____
 Frequency – Please choose one: ☐ Weekly ☐ Every two weeks ☐ Twice monthly ☐ Monthly ☐ Every two months ☐ Quarterly ☐ Semi-annually ☐ Annually
 Second monthly date: _____

Fund		Purchase	
Fund no.	Fund name	Amount (\$)	Sales Commission (%)

Part 5: Systematic withdrawal plan (SWP)

I understand that if withdrawals are in excess of net capital appreciation, such withdrawals could result in encroachment on, or possible exhaustion of, the original capital.

Amount _____

Payment method:

☐ Directly deposit into bank account (Complete **Part 8: Banking information**)

M M M D D Y Y Y Y
[][][][][][][][][][]

Start date:

Frequency – Please choose one:

☐ Weekly

☐ Every two weeks

☐ Twice monthly

Second monthly date:

D D
[][][][][][][][][][]

☐ Monthly

☐ Every two months

☐ Quarterly

☐ Semi-annually

☐ Annually

Fund		Payment (Unless otherwise specified, the systematic withdrawal will be provided as a gross payment)	
Fund no.	Fund name	☐ Dollar Amount	☐ Percent

Part 6: Systematic switch plan (SSP) – For automatic allowable switches between investments

• Transfers between accounts can only be made to RRSP and RESP accounts. At least one plan holder must be the same between the two accounts.

☐ Transfer from one fund to another fund within the **same account**

☐ Transfer fund(s) from one account to another account

From investment/account no. _____ To investment/account no. _____

M M M D D Y Y Y Y
[][][][][][][][][][]

Start date:

M M M D D Y Y Y Y
[][][][][][][][][][]

End date:

Frequency – Please choose one:

☐ Weekly

☐ Every two weeks

☐ Twice monthly

Second monthly date:

D D
[][][][][][][][][][]

☐ Monthly

☐ Every two months

☐ Quarterly

☐ Semi-annually

☐ Annually

☐ Annual 10% free auto switch of units from DSC funds to front end version of same funds (Applies to all funds in account at time of set up. For any changes to account, new instructions required) Indicate start date. If no start date is indicated service will start on first business day of January in the following year.

Start Date: _____

Fund					Amount
From fund no.	From fund name	To fund no.	To fund name		

Part 7: Distribution options – All distributions will default as specified in the Invesco Simplified Prospectus unless otherwise indicated below where allowable

Payment method:

☐ Directly deposit into bank account (complete **Part 8: Banking information**)

☐ Reinvest distributions into the following fund(s):

Fund				Purchase	
From fund no.	From fund name	To fund no.	To fund name	% paid in cash (0-100%)	% reinvested (0-100%)

Important Information:

Account Holder may elect to receive all or part of a distribution in cash. Please specify the percentages of distributions to be paid to you in cash and/or to be reinvested in additional units of a fund.

Part 8: Banking information – Please complete for purchase/PAC plan or direct deposit of SWP or distribution payments.

☐ Imprinted void cheque included ☐ Complete financial information below

Name of financial institution

Account name(s)

Address _____ City _____ Prov. _____ Postal code _____

Bank code _____ Transit number _____ Account number _____

Authorization: I hereby authorize Invesco to draw on my account at the financial institution specified above, and I hereby authorize the financial institution to debit my account for the purchase of mutual funds as specified in part 3 and/or 4, subject to the attached Pre-Authorized Chequing Terms and Conditions.

✕

Signature of signatory on bank account

✕

Signature of co-signatory on bank account

For payments from corporate bank accounts, please provide a Banking Resolution.

Important information:

The name of the imprinted void cheque or listed on the Account name field above must be the same as the name of the Account Holder specified in **Part 1: Account Holder information**

Part 9: Successor holder and Beneficiary designation – (Note to Holders domiciled in Quebec: Successor Holder designations and Beneficiary designations are not accepted in Quebec.)

Part A: Spouse Successor Holder designation

Where permitted by law, I hereby designate my spouse or common-law partner ("Spouse"), named below, to become the Holder and acquire all of my rights as the Holder of the Account in accordance with the terms of the Trust Agreement in the event of my death before termination of the Account, if he or she survives me. I reserve the right to change or revoke this designation as permitted by law, in accordance with the terms of the Trust Agreement. In the event of marriage breakdown where my spouse named below is no longer my spouse on the date of my death, the beneficiary designation for the plan will apply.

Spouse's first name	Spouse's last name	Spouse's Social Insurance Number	Spouse's date of birth (MMMMDDYYYY)

Part B: Beneficiary Designation

If I have not designated my Spouse as Successor Holder, or if I have but he or she has not survived me, and where permitted by law, I hereby designate each person named below as a beneficiary of the Account entitled to receive all or a portion of the amounts payable under the Account in accordance with the terms of the Trust Agreement in the event of my death, before termination of the Account, if he or she survives me. I reserve the right to change or revoke this designation as permitted by law, in accordance with the terms of the Trust Agreement.

Additional beneficiaries: If necessary, add particulars of additional beneficiaries on separate sheet marked Schedule A. Check if Schedule A is attached ☐

Beneficiary(s) first name	Last name	Relationship	Allocation (must add up to 100%)
			%
			%
			%
			%
			%

I acknowledge that this Successor Holder and Beneficiary Designation forms part of the Application and Trust Agreement for the Account and will apply to all property held under the Account on my death. This successor Holder or beneficiary designation will not automatically change as a result of a future relationship or relationship breakdown and it may be necessary to complete a new designation for this purpose. In certain provinces and territories, a disposition of the Account in the event of my death can only be made by Will, and I am solely responsible for ensuring that this successor Holder and beneficiary designation is valid under the laws of Canada, its provinces or territories and that it is changed when appropriate.

Part 10: Authorization (MANDATORY)

I request that Invesco purchase, redeem or exchange units/shares of the investments as indicated. I have received the current Invesco Simplified Prospectus or Fund Facts document(s) of the investment(s) purchased and understand that these transactions are made under the terms and conditions found in the Invesco Simplified Prospectus and the Pre-Authorized Chequing Terms and Conditions (where applicable).

Language / Langue (Québec residents only – Résidents du Québec seulement). I acknowledge that I was offered the choice to complete this application form in English or French and have expressly requested to complete this application form exclusively in English, after receiving a French version. I expressly agree that the application form and all related documents, including notices, will be exclusively in English. Je reconnais qu'on m'a offert le choix de remplir le présent formulaire de demande en français ou en anglais et que j'ai expressément demandé de le remplir exclusivement en anglais, après avoir reçu une version française. Je conviens expressément que le formulaire de demande et tous les documents connexes, y compris les avis, seront rédigés exclusivement en anglais.

To The Royal Trust Company (the "Trustee"): To register the qualifying arrangement as a Tax-Free Savings Account under section 146.2 of the income Tax Act (Canada) any applicable provincial income tax legislation. I acknowledge and agree to be bound by the terms and conditions of this Account as set out in the application and the Trust Agreement.

Where the Account does not satisfy the registration requirements or the Canada Revenue Agency does not accept the Account for registration, the Holder authorizes the Agent to open an Investment account with Invesco in his or her name and maintain the Account assets in that Investment account. The Holder understands that he/she will solely be responsible for any Taxes relating to these Investment account assets.

I will notify the Agent, in a form acceptable to the Agent and Royal Trust, should I no longer be resident in Canada. I understand that I may be liable for certain tax consequences arising in connection with a non-compliant qualifying arrangement.

To Invesco: If any shares/units of an Invesco mutual fund are held in the Account and such shares/units are part of a series or fund that is to be terminated, liquidated or that becomes no longer available for purchase (a "cessation"), then I hereby instruct Invesco to transfer my shares/units of such investment prior to such termination/liquidation/cessation into the Default Fund. If I am eligible for a management and advisory fee reduction ("MFR") for shares/units of any series of an investment held within the Account and such series are no longer available for purchase, I hereby acknowledge that I will receive my MFR in the form of shares/units of the Default Fund.

Personal information: By signing below, I consent to my personal information being collected, used and disclosed by Invesco for the purposes of administering my account, including executing my transactions and reporting to me and my representative. In particular, I consent to third parties outside of Canada, including in the United States, to perform services for Invesco involving some or all of my personal information. I understand and consent to the transfer of information to those third parties. If I have provided information about my spouse, partner, beneficiary and/or any other person, I confirm that I am authorized to do so. I understand that I may withdraw my consent at any time on 30 days' notice to Invesco, but that my doing so may limit the services or products it is able to offer me, and that in some circumstances, legal requirements may prevent me from withdrawing consent. (Invesco's Privacy Policy is attached and is available on the Invesco website, www.invesco.com/ca.)

Account Holder signature 

Date _____

Authorized signature: _____

Jim Russell, Director

Accepted by Invesco Canada Ltd., carrying on business as Invesco, as agent for The Royal Trust Company as Trustee.

Invesco Tax-Free Savings Account – Trust Agreement

1. **Definitions.** Whenever used in this Trust Agreement or the Application, any capitalized terms shall have the meanings given to them below:
"Account" means the tax free savings account established for the Holder;
"Agent" means Invesco Canada Ltd., carrying on business as Invesco and its successors and assigns;
"Applicable Laws" means any laws of Canada, including the Tax Act, and of the provinces and territories applicable hereto;
"Application" means the Holder's application to the Agent to establish the Account; "Contribution" means a contribution of cash, payable by cheque, or any Qualified Investment;
"Distribution" means a payment out of or under the Account in satisfaction of all or part of the Holder's interest therein;
"Estate Documents" means proof of the Holder's death and such other documents including Letters Probate of the Holder's will as may be required by the Trustee or the Agent in its sole discretion in connection with the transmission of the Property on the Holder's death;
"Estate Representative" means an executor, an administrator, an administrator with the will annexed, a liquidator, or an estate trustee with a will or without a will, whether one or more than one is so appointed;
"Expenses" means all (i) costs, (ii) charges, (iii) commissions, (iv) investment management fees, brokerage fees and other fees, (v) legal expenses and (vi) out-of-pocket expenses incurred from time to time in relation to the Account;
"Former Spouse" means an individual who is considered by Applicable Laws to be the Holder's former Spouse;
"Holder" means an individual as defined in subsection 146.2(1) of the Tax Act (or as such defined term is amended under the Tax Act from time to time);
"Proceeds" means the Property, less any applicable Expenses and Taxes;
"Prohibited Investment" means Property (other than prescribed excluded Property as that term is defined in the Tax Act) that is:
(a) a debt of the Holder;
(b) a share of the capital stock of, an interest in or a debt of:
(i) a corporation, partnership or trust in which the Holder has a significant interest;
(ii) a person or partnership that does not deal at arm's length with the Holder or with a person or partnership described in subparagraph (i);
(c) an interest in, or right to acquire, a share, interest or debt described in paragraph (a) or (b); or
(d) prescribed property (as that term is defined in the Tax Act);
"Property" means any property, including the income on it and the proceeds from it held in the Account from time to time;
"Qualified Investment" means any investment which is a qualified investment for a TFSA according to the Tax Act;
"Spouse" means an individual who is considered by the Tax Act to be the Holder's spouse or common-law partner;
"Survivor" means an individual who survives the Holder and was a Spouse immediately before the death of the Holder;
"Tax Act" means the Income Tax Act (Canada);
"Taxes" means any and all applicable taxes and assessments, including any penalties and interest, as may be required under Applicable Laws;
"TFSA" means a tax-free savings account, which is a "qualifying arrangement" (as that term is defined in the Tax Act) the issuer of which has elected, in the form and manner prescribed by the Tax Act, to register as a TFSA; and
"Trustee" means The Royal Trust Company in its capacity as trustee and issuer of the arrangement governed by this Trust Agreement, and its successors and assigns.
2. **Acceptance of Trust.** If the Holder has attained the minimum age specified in the Tax Act for entering into a TFSA and unless the Holder is otherwise notified, the Trustee agrees to act as trustee of the Account for the exclusive benefit of the Holder and to administer the Property in accordance with the terms of this Trust Agreement. If the Trustee declines to act as trustee of the Account, the Holder will be notified and any Contributions will be returned.
3. **Appointment of Agent.** The Trustee has appointed the Agent as its agent to perform certain duties relating to the operation of the Account. The Trustee acknowledges and confirms that ultimate responsibility for the administration of the Account remains with the Trustee.
4. **Registration.** If the Trustee agrees to act as trustee of your Account, the Trustee agrees to elect, in the manner and form prescribed by the Tax Act, to register the arrangement governed by this Trust Agreement as a TFSA under the social insurance number of the Holder. For greater certainty, unless the Holder has attained the minimum age specified in the Tax Act at the time that this arrangement is entered into, it shall not constitute a qualifying arrangement, as that term is defined in subsection 146.2(1) of the Tax Act, susceptible of being registered as a tax free savings account.
5. **Account.** The Agent shall maintain an Account for the Holder which will record particulars of all Contributions, investments, transfers, Distributions and transactions under the Account, and shall make available to the Holder, at least annually, a statement of account.
6. **Contributions.** Only the Holder may make Contributions to the Account in such amounts as are permitted under the Tax Act, and as may be permitted in the sole discretion of the Trustee. It shall be the sole responsibility of the Holder to ensure that the amount of the Contributions is within the limits permitted under the Tax Act.
7. **Distributions to Reduce Tax.** Notwithstanding any limit on the frequency of Distributions or any minimum Distribution requirement identified in the Application or other notice given under the terms of this Trust Agreement, any Distributions may be made at any time to reduce the amount of Taxes otherwise payable by the Holder as a result of excess Contributions or as a result of Contributions made while a non-resident of Canada made contrary to the Tax Act.
8. **Tax Information.** The Holder shall be provided with appropriate information slips for income tax purposes and such other information as may be required under Applicable Laws.
9. **Delegation by Trustee.** The Holder expressly authorizes the Trustee to delegate to the Agent the performance of the following duties of the Trustee:
(a) receiving Contributions;
(b) receiving transfers of Property;
(c) investing and reinvesting the Property as directed by the Holder or the Holder's agent;
(d) registering and holding the Property in the Trustee's name, the Agent's name, in the name of their respective nominees or in bearer form as determined by the Agent from time to time;
(e) maintaining records, including information concerning a Survivor and the designation of beneficiaries, where applicable;

- (f) providing to the Holder statements of account at least annually;
- (g) preparing all government filings and forms;
- (h) making Distributions or other payments from the Account pursuant to the provisions hereof; and
- (i) such other duties and obligations of the Trustee as the Trustee in its sole discretion may from time to time determine.

The Holder acknowledges that, to the extent the Trustee delegates any such duties, the Trustee shall thereby be discharged from performing such duties, subject to paragraph 3.

10. **Investment of the Property.** The Property shall be invested and reinvested on the directions of the Holder (or the Holder's agent) without being limited to investments authorized by law for trustees. The Trustee, in its sole discretion, may require the Holder to provide such documentation in respect of any investment or proposed investment as the Trustee deems necessary in the circumstances. The Trustee reserves the right to decline to make any particular investment if the proposed investment and related documentation do not comply with the Trustee's requirements at that time. No one other than the Holder and the Trustee shall have rights under the Account relating to the investment and reinvestment of the Property. If the Holder does not provide the Agent with directions as to the reinvestment of any property of the Account, which may mature or no longer be offered as an investment selection by the Agent, the Agent will reinvest the Property in units of the default fund as specified in the Invesco Simplified Prospectus until otherwise directed by the Holder. The Trustee and Agent will not be liable for any investment losses that may occur.
11. **Choice of Investments.** The Holder shall be responsible for selecting the investments of the Account, ensuring that an investment is and continues to be a Qualified Investment, and determining whether any such investment is or remains a Qualified Investment and whether any such investment is not and continues not to be a Prohibited Investment. The Trustee shall exercise the care, diligence and skill of a reasonably prudent person to minimize the possibility that the Account holds a non Qualified Investment. The Holder shall have the right to appoint the Agent as his or her agent for the purpose of giving investment directions as provided in this paragraph and paragraph 10.
12. **Right of Offset.** The Trustee and the Agent shall have no right of offset with respect to the Property in connection with any obligation or debt owed by the Holder to the Trustee or the Agent, other than the Expenses payable by the terms of this Trust Agreement.
13. **No borrowing.** The trust is prohibited from borrowing money or other property for the purposes of the Account.
14. **Distributions.** Subject to any limit on the frequency of Distributions or to any minimum Distribution requirement identified in the Application or other notice given under the terms of this Trust Agreement, and subject to the deduction of all Expenses and Taxes, the Holder may, at any time and upon 60 days' written notice or such shorter period as the Agent in its sole discretion permits, request that the Agent liquidate part or all of the Property and pay to the Holder an amount from the Property not exceeding the value held under the Account immediately before the time of payment. If at any time the value of the Account is less than \$500, a Distribution may be made to the Holder equal to the value of the Account, after which the Account shall be terminated. The Agent will liquidate all of the Property for the purposes of making the Distribution and paying Expenses and Taxes. Neither the Trustee nor the Agent will be liable for any resulting loss. If the Account does not have sufficient value to pay Expenses and Taxes, the Trustee and/or Agent will be entitled to require the Holder to pay these Expenses and Taxes. No one other than the Holder and the Trustee shall have rights under the Account relating to the amount and timing of Distributions.
15. **Successor Holder and Beneficiary Designation.** Where the Holder is domiciled in a jurisdiction where Applicable Laws permit the Holder to validly designate a successor holder or a beneficiary for the Account, the Holder may designate: (a) a Spouse as successor holder of the Account; or (b) a beneficiary to receive the Proceeds on the Holder's death. A designation may only be made, changed or revoked in writing, signed by the Holder, in a format acceptable to the Agent and delivered to the Agent prior to the Proceeds being paid from the Account. The Holder acknowledges that it is his or her sole responsibility to ensure that a designation or revocation is valid under Applicable Laws.
16. **Death of Holder.** Upon receipt of satisfactory evidence of the Holder's death where a Survivor is the successor holder of the Account, the Trustee will continue to hold the Property for such successor holder as Holder of the Account. If there is no successor holder, the Trustee will hold the Property for payment in a lump sum to the beneficiary designated by the Holder if the designated beneficiary was living at the time of the Holder's death, or if the Holder has not validly designated a beneficiary or if the designated beneficiary has predeceased the Holder, for payment to the Holder's estate. If the Holder has designated more than one beneficiary and the Holder has not indicated how the Proceeds are to be shared among them or the shares do not add up to 100%, then the Proceeds shall be divided equally among the designated beneficiaries who were living at the time of the Holder's death. In any case, the Proceeds will be paid subject to Applicable Laws and paragraph 13, and only after the Agent receives the Estate Documents and all releases that the Trustee or Agent request. The Trustee and the Agent will be fully discharged hereunder by the payment of the Proceeds even if a beneficiary designation made by the Holder is invalid as a testamentary instrument.
17. **Release of Information.** The Trustee and the Agent each are authorized to release any information about the Account and the Proceeds as the Trustee or the Agent deems advisable, including after the Holder's death, where there is to be a transfer to a Spouse's TFSA pursuant to paragraph 25, to an Estate Representative of the Holder, to a creditor of the Holder, to a Spouse or to the designated beneficiary of the Account.
18. **Payment into Court.** If there is a dispute about:
(a) a payout from the Account or equalization of Property or other dispute arising from a breakdown of the Holder's marriage or common-law partnership;
(b) the validity or enforceability of any legal demand or claim against the Property; or
(c) the authority of a person or person or personal representative to apply for and accept receipt of the Proceeds on death of the Holder;
the Trustee and the Agent are entitled to either apply to the court for directions or pay the Proceeds into court and, in either case, fully recover any legal costs it incurs in this regard as Expenses from the Account.
19. **Limitation of Liability.** The Trustee shall not be liable for any loss suffered by the Account, by the Holder or by any Survivor or beneficiary designated for purposes of the Account as a result of the purchase, sale or retention of any investment including any loss resulting from the Trustee acting on the direction of the Holder or of the Holder's agent.
20. **Indemnity.** The Holder agrees to indemnify the Trustee and the Agent for all compensation, Expenses and Taxes, other than those Taxes for which the Trustee is liable in accordance with the Tax Act and that cannot be charged against or deducted from the Property in accordance with the Tax Act, incurred or owing in connection with the Account to the extent that such compensation, Expenses and Taxes cannot be paid out of the Property.

21. Self-Dealing. The Trustee and the Agent's services are not exclusive and, subject to the limitations otherwise provided in this Trust Agreement on the powers of the Trustee and the Agent, each of the Trustee and the Agent may, for any purpose, and are hereby expressly authorized from time to time in its sole discretion to, appoint, employ, invest in, contract or deal with any individual, firm, partnership, association, trust or body corporate, with which it may be directly or indirectly interested or affiliated with, whether on its own account or on the account of another (in a fiduciary capacity or otherwise), and to profit therefrom, without being liable to account therefore and without being in breach of this Trust Agreement.

22. Compensation, Expenses and Taxes. The Trustee and Agent will be entitled to such reasonable fees as each may establish from time to time for services rendered in connection with the Account. All such fees will, unless first paid directly to the Agent, be charged against and deducted from the Property in such manner as the Agent or Trustee determines.

If the Trustee determines that the Account is liable for any Expenses or Taxes, the Expenses and Taxes shall be paid from the Account, including Expenses with respect to the execution of third party demands or claims against the Account.

All Taxes, other than those Taxes for which the Trustee is liable and that cannot be charged against or deducted from the Property in accordance with the Tax Act, will be charged against and deducted from the Property in such a manner as the Agent determines.

23. Sale of Property. The Trustee and Agent may sell Property in their respective sole discretion for the purposes of paying compensation, Expenses and Taxes, other than those Taxes for which the Trustee is liable in accordance with the Tax Act and that cannot be charged against or deducted from the Property in the accordance with the Tax Act.

24. Transfers to the Account. Amounts may be transferred to the Account from another TFSA of the Holder, or of a Spouse or Former Spouse where:

- (a) the Holder and a Spouse or Former Spouse are living separate and apart and the transfer is made under a decree, order or judgment of a competent tribunal or under a written separation agreement, relating to the division of property between the Holder and the Spouse or Former Spouse in settlement of rights, arising out of, or on the breakdown of, their marriage or common-law partnership; or
- (b) the Holder is the Spouse's survivor and the transfer occurs as a result of an exempt contribution (as that term is defined in the Tax Act).

25. Transfers out of the Account. Upon delivery to the Agent of a written direction from the Holder in a form satisfactory to the Trustee, the Trustee shall transfer all or a portion of the Property as is specified in the written direction:

- (a) to another TFSA of the Holder; or
- (b) to a TFSA of a Spouse or Former Spouse where the Holder and the Spouse or Former Spouse are living separate and apart and the transfer is made under a decree, order or judgment of a competent tribunal or under a written separation agreement, relating to the division of property between the Holder and the Spouse or Former Spouse in settlement of rights, arising out of, or on the breakdown of, their marriage or common-law partnership.

26. Changes to Trust Agreement. The Trustee may change this Trust Agreement periodically. The Holder will be notified of any such change and will be deemed to have accepted such change. No change to this Trust Agreement (including a change calling for the Trustee's resignation as trustee or the termination of the trust created by this Trust Agreement) may be made that will result in the Account not being acceptable as a TFSA under Applicable Laws.

27. Replacement of Trustee.

- (a) The Trustee may resign by giving such written notice to the Agent as may be required from time to time under the terms of an agreement entered into between the Agent and the Trustee. The Holder will be given at least 30 days prior notice of such resignation. On the effective date of such resignation, the Trustee will be discharged from all further duties, responsibilities, and liabilities under this Trust Agreement, except those incurred before the effective date. The Trustee will transfer all Property, together with all information required to continue the administration of the Property as a tax free savings account under Applicable Laws, to a successor trustee.
- (b) The Trustee has agreed to resign upon it being provided with notice in writing by the Agent if the Trustee is satisfied that the successor trustee nominated by the Agent will properly assume and fulfill the Trustee's duties and liabilities hereunder in respect of the administration of the Account.
- (c) In either event, the Agent shall forthwith nominate a person to replace the Trustee and the resignation of the Trustee shall not take effect until its replacement has been so nominated by the Agent and appointed as successor by the Trustee and approved by Canada Revenue Agency or its successor. Failing the nomination of a replacement by the Agent within 30 days after receipt by it of a notice of resignation, the Trustee shall be entitled to appoint a person as its own replacement.
- (d) Upon any such appointment and resignation of the Trustee, the person so appointed as replacement trustee shall, without further act or formality, be and become the Trustee hereunder.

Such replacement trustee shall, without any conveyance or transfer, be vested with the same power, rights, duties and responsibilities as the Trustee and with the assets of the Account as if the replacement trustee had been the original Trustee. The Trustee shall execute and deliver to the replacement trustee all such conveyances, transfers and further assurances as may be necessary or advisable to give effect to the appointment of the replacement trustee.

- (e) Any person appointed as a replacement trustee shall be a corporation resident in Canada that is licensed or otherwise authorized under the laws of Canada or a province to carry on in Canada the business of offering to the public its services as trustee.

Any trust company resulting from the merger or amalgamation of the Trustee with one or more trust companies and any trust company that succeeds to substantially all of the trust business of the

Trustee shall thereupon become the successor to the Trustee without further act or formality. In all such cases, Canada Revenue Agency or its successor shall be notified.

28. Assignment by Agent. The Agent may assign its rights and obligations hereunder to any other corporation resident in Canada authorized to assume and discharge the obligations of the Agent hereunder and under Applicable Laws.

29. Notice. Any notice given by the Holder to the Agent shall be sufficiently given if delivered electronically to the Agent upon the Holder's receipt of an acknowledgement and response to same or personally to the office of the Agent where the Account is administered, or if mailed, postage prepaid and addressed to the Agent at such office, and shall be considered to have been given on the day that the notice is actually delivered or received by the Agent.

Any notice, statement, receipt or other communication given by the Trustee or the Agent to the Holder shall be sufficiently given if delivered electronically or personally to the Holder, or if mailed, postage prepaid and addressed to the Holder at the address shown on the Application or at the Holder's last address given to the Trustee or the Agent, and any such notice, statement, receipt or other communication shall be considered to have been given at the time of delivery to the Holder electronically or personally or, if mailed, on the third day after of mailing to the Holder.

30. Privacy. The Holder hereby consents and agrees to allow the Agent and the Trustee (the "Parties") to collect personal information about the Holder from the Holder and from other sources (the "Information") and to use such Information to verify the Holder's identity; to administer the Account; to provide the Holder with products and services the Holder may request, or which are required to be provided to the Holder by Applicable Law or applicable regulatory policies; and as otherwise required or permitted by Applicable Law.

The Parties may use and disclose:

- (i) the Information to third parties as necessary to administer the Account or as required by Applicable Law or by applicable regulatory policies; and
- (ii) the Holder's social insurance number as required by Applicable Law, including for income tax reporting purposes.

The Parties may make the Information available to their employees, agents and service providers, who are required to maintain the confidentiality of the Information. In the event a service provider is located outside of Canada, the service provider is bound by, and the Information may be disclosed in accordance with, the laws of the jurisdiction in which the service provider is located. The Parties may also use the Information to manage their risks and operations and those of their affiliates and to comply with valid requests for information about the Holder from regulators, government agencies, public bodies or other entities which have a right to issue such requests.

If the Holder provides personal information about a third party (such as their spouse, partner, beneficiary and/or any other person), the Holder shall have first obtained appropriate consent from that third party to the collection, use and disclosure of their personal information by the Parties in the course of the administration of the Account, for the purposes for which the Holder has provided it to any Party, including the purposes described herein. By writing to the Agent the Holder may obtain access to the Information at any time and review its content and accuracy, and have it amended as appropriate; however, access may be restricted by the Agent or in accordance with any Applicable Law.

31. Date of Birth. The Holder's statement of his or her date of birth in the Application shall be deemed to be a certification as to the Holder's age, on which the Trustee and the Agent may rely, and an undertaking to provide any further evidence of proof of age as may be required by the Agent.

32. Contribution While Holder is a Minor. Where the Holder makes a Contribution to the Account prior to the Holder having attained the age of majority in accordance with Applicable Laws, the Holder will execute a ratification of the Application and all transactions made by the Holder in respect of the Account prior to reaching the age of majority.

33. Social Insurance Number and Address of Holder. The Trustee and the Agent shall be entitled to rely upon the Agent's records as to the social insurance number, and to the current address of the Holder as establishing his or her residency and domicile for the operation of the Account and its devolution on the death of the Holder subject to any written notice to the contrary respecting the Holder's domicile on death.

34. Heirs, Representatives and Assigns. The terms of this Trust Agreement shall be binding upon the heirs, Estate Representatives, attorneys, committees, guardians of property, other legal and personal representatives, and assigns of the Holder and upon the respective successors and assigns of the Trustee and the Agent and their directors, officers, employees, and agents, as well as their respective estates, Estate Representatives, heirs, attorneys, committees, guardians of property, other legal and personal representatives, and assigns.

35. Language / Langue (Québec residents only – Résidents du Québec seulement). I, the Holder, acknowledge that I was offered the choice to enter into this agreement in English or French and have expressly requested to enter into such agreement exclusively in English, after receiving a French version. I expressly agree that such agreement and all related documents, including notices, will be exclusively in English. Je reconnais, comme titulaire, qu'on m'a offert le choix de conclure cette convention en français ou en anglais et que j'ai expressément demandé à ce qu'elle soit exclusivement en anglais, après avoir reçu la version française. Par conséquent, je consens expressément à ce que cette convention et tous les documents qui s'y rattachent, y compris les avis, soient exclusivement rédigés en anglais.

36. Interpretation. Unless the context requires otherwise, any terms or provisions importing the plural shall include the singular and vice versa.

37. Governing Law. This Trust Agreement and the Account shall be governed by and construed in accordance with the laws of the Province of Ontario and the laws of Canada applicable therein. The Holder expressly agrees that any action arising out of or relating to this Trust Agreement or the Account shall be filed only in a court located in Canada and the Holder irrevocably consents and submits to the personal jurisdiction of such court for the purposes of litigating of any such action.

Privacy Policy

The following policy applies to business conducted at and to products and services offered by Invesco Canada Ltd. and its Canadian-incorporated affiliates ("Invesco Canada").

At Invesco Canada, our focus is to put clients' interests first. As one of Canada's leading investment management companies, our reputation has been built on a foundation of investment discipline and a track record of success. A subsidiary of Invesco Ltd., our focus is on investment management, offering a diversified suite of solutions to institutions, organizations, companies and individuals across Canada and around the world.

The following is provided to give you information on our commitment to protecting your privacy and maintaining and safeguarding the confidentiality of your personal information.

What is personal information?

Personal information means any information about an identifiable individual, including information such as your home address and telephone number, date of birth, age, marital status, employment history, Social Insurance Number and credit history.

How do we collect your personal information?

Personal information is collected either directly from clients or through a financial services professional such as a financial advisor. The information is obtained by us when clients or advisors send us completed applications, agreements, forms or other documents by paper or electronically. In servicing our clients' accounts, we may also generate personal information, including, where applicable, transaction information, and account statements. From time to time, we may be required to collect information from a third party who is not a financial advisor (for example, an executor of an estate account or a third party consultant), and such information may be considered personal information as well.

What information do we collect?

The personal information in client accounts may include the name, mailing address and phone number(s), social insurance number, birth date, account holdings and transactions and the name and address of the named beneficiaries of our clients. Other types of information we may collect and hold in client accounts depend on the investment or services requested. For example, where a client has established a pre-authorized chequing plan which enables them to make purchases at regular intervals, we maintain the client's financial institution account number. At times, we may request independent sources to verify and supplement information that is provided to us.

Email policy

We do not sell or share our list of email addresses with any third parties for marketing purposes.

How we use your email address:

- If you are a registered user of www.invesco.com/ca, you must provide us with a valid email address, there may be times we may need to contact you regarding your account at www.invesco.com/ca. Please note that you will never receive an email from Invesco Canada asking you to provide your login ID, password or any other sensitive personal information.
- If you voluntarily subscribe to our e-Option service, you will receive an email when information you requested is available online. You may update your e-Option settings at any time.
- In order to provide the best service possible, we may wish to contact you with information about Invesco Canada that we feel is of interest to you. Should you receive an unwanted email from Invesco Canada, you may opt out of future mailings at any time either by logging into your personal account and changing your email settings or by contacting Invesco Canada directly.

How do we use personal information?

We may use personal information for these stated purposes:

- Identifying clients and determining clients' eligibility to invest in our products (where applicable)
- Establishing and administering client accounts, which involves determining, maintaining, recording, and storing account holdings and transaction information in applicable client records
- Ensuring the information in our records is accurate
- Executing client transactions
- Verifying previously given information when necessary
- Providing clients and, if applicable, advisors/dealers with account statements and other account related information
- Providing financial statements, tax receipts, proxy mailings, transaction confirmations and other information which may be requested or needed to service client accounts
- Communicating with clients and, if applicable, advisor/dealers regarding service offering or products which may be of interest to you
- Meeting legal and regulatory requirements

We do not sell personal information. We may use personal information for general research in an effort to enhance our service and product offerings.

When is information disclosed to third parties?

We disclose personal information to agents, our vendors or other organizations only for the purposes set out in this Privacy Policy and for no other purpose. Third parties who may be provided with personal information include:

- Advisors/dealers, where applicable
- Other mutual fund companies, financial institutions and securities dealers when necessary to carry out client instructions such as transferring funds
- Other Invesco Canada affiliates, who perform services for us, such as advisory services, back office functions and record keeping, or whose products are a constituent of an Invesco Canada product
- Domestic and international governments, government agencies, law enforcement agencies and regulators (only when compelled by law)
- Third parties who perform services for us, such as account statement preparation, mailing, courier deliveries, imaging and document storage

At times we may use third parties outside of Canada, including in the United States, to perform services for us involving some personal information. This may require transfer of information to those third parties. This information is subject to both the laws of Canada and the laws of the third party's jurisdiction, including laws with respect to disclosure of such information. Invesco Canada ensures that the third party provides a comparable level of protection for that personal information, and that use of the personal information is limited to purposes set out in this policy.

Disclosing your personal information when required or permitted by law

We may also disclose personal information in connection with:

- A corporate reorganization in which case the information would only be shared with employees of the organization who have a strict need to know the information to evaluate the reorganization.
- A potential merger or amalgamation with another third party or a sale of all or a substantial portion of our assets to enable that third party to evaluate the transaction and, in that case, the information would only be shared with members of that organization who have a strict need to know the information to evaluate the transaction
- An actual merger, amalgamation or sale of all or a substantial portion of our assets where you would then become a client of a different organization

In all cases above, Invesco Canada will only disclose the information if the third party has agreed to: protect the information at least as well as we do under our privacy policy; only share it with members of their organization who have a strict need to know the information; and use it only for the purpose of the transaction and for no other purpose.

Often the type of information that we must disclose relates to government tax reporting requirements. We may disclose personal information to a third party without client consent if we have reason to believe that disclosing this information is necessary to identify, contact or bring legal action against someone who may be causing injury to or interference with (either intentionally or unintentionally) our rights or property, other website users or anyone else that could be harmed by such activities.

We may disclose user information when we believe in good faith that such disclosure is required by and in accordance with the law.

How do we obtain your consent?

In providing information to us, either directly or through a financial services professional such as a financial advisor, and continuing to conduct business with us, you are consenting to the use of your personal information.

How can you withdraw your consent?

You may withdraw your consent to our use of your personal information at any time by contacting us at 1.800.874.6275. If you withdraw consent, you may limit the services or products we are able to offer you. In some circumstances, legal requirements may prevent you from withdrawing consent.

How can you access and update your information?

Invesco Canada will provide you with reasonable access to your personal information on your written request. Our verification procedures help to ensure that personal information is only released to the correct authorized person. We will provide you with the requested information within 30 days of receipt of your written request, unless prohibited by law. Except under limited circumstances, you may ask us to amend or update your personal information at any time. Invesco Canada reserves the right to charge you minimal costs incurred in providing the information requested. If you have a sensory disability, please let us know and we will make every effort to provide your personal information in an alternative format.

Invesco Canada may not be able to provide you with full access to your information if:

- It contains references to other persons
- We would have to disclose proprietary information confidential to Invesco Canada or its affiliates
- It has been destroyed
- It cannot be disclosed for legal or regulatory reasons

If we are unable to provide you with access to your personal information, we will give you an explanation.

How is your information protected?

Invesco Canada is as concerned with protecting your personal information as you are. We have taken all appropriate measures and put in place controls aimed at safeguarding data. These measures include restricting physical access to our offices and records, passwords and file encryption for online activities.

Our employees and service providers have access to your personal information only for the purposes set out in this policy to enable them to perform their duties in servicing client accounts.

What online protocols are in place online to protect your information?

At Invesco Canada, we take the issue of privacy seriously. We want to assure you that the security and confidentiality of personal information that you disclose while visiting Invesco Canada's websites will be respected. Policies governing the protection of privacy on the website are strictly observed and enforced to ensure this happens. Privacy, security and confidentiality are as important online as with all our other business functionality.

Along with our privacy policies, we employ usage of firewalls, encryption of all data, and user authentication protocols. We may also place cookies on your computer to allow for easier navigation and to customize your web experience on our sites. A cookie is a piece of information about an internet session that may be created when a visitor accesses a website.

We use the information collected from you when you visit our website to address your specific requests and to provide better customer service. It may also be used to document communications between Invesco Canada and our online visitors and to comply with any applicable legal and/or regulatory requirements. If you have any questions about the protection of your personal information that you have disclosed on Invesco Canada's websites, you may send an email to privacy@invesco.com so that we can address your questions as quickly and completely as possible.

How long do we keep your information?

In order to service your account and to meet regulatory and legal obligations, Invesco Canada may be required to maintain information related to you and your account for a certain period of time. Personal information may be destroyed once it is deemed that your information is no longer necessary for the above-mentioned reasons. Personal information is destroyed in accordance with our records management and destruction policies. How long we keep your information depends on the reasons for which it was collected. The type of product or service and the kind of information also affects the length of time we retain information. Your information may be kept even if you are no longer a client with us so long as it is legally necessary for us to have sufficient information to respond to any issues that may arise at a later date.

Will we change this policy?

If we find it necessary or desirable to change our Privacy Policy in the future, we will post changes on our website as soon as they go into effect. You have a right to know at all times what information we collect, how it is used, and under what circumstances we can disclose it. Any change to this policy will become effective on the date the change is posted on our website. You will be able to clearly see the effective date at the lower left hand corner of the web page. We recommend that you print a copy of the updated policy for your reference and revisit it from time to time to ensure you are aware of the changes.

Resolution of your concerns:

If you have any issues or concerns, please take the following steps:

- Step 1.** Your issue or concern may be easily resolved by contacting our Client Relations group:
Telephone: 1.800.874.6275
Fax: 1.800.631.7008
Email: inquiriescanada@invesco.com
- Step 2.** If speaking to our Client Relations group does not resolve your issues or concerns, you may contact the Privacy Officer at Invesco Canada at privacycanada@invesco.com or by calling 1.800.588.4880 and request to speak to a Privacy Officer.
- Step 3.** If after contacting the Privacy Officer your issue or concern has not been resolved, you may contact the Privacy Commissioner of Canada:
Office of the Privacy Commissioner of Canada 30 Victoria Street
Gatineau, Quebec K1A 1H3
Telephone: 1.800.282.1376 or 819.994.5444
Fax: 819.994.5424
TTY: 819.994.6591

Pre-Authorized Chequing Terms and Conditions

- **By signing this PAD agreement, you hereby waive any pre-notification requirements as specified by section 17 of the Payments Canada - Rule H1 Pre-Authorized Debits (PADs) (Rule H1).**
- You authorize Invesco Canada Ltd (Invesco Canada) to debit the bank account(s) provided for the amount(s) and in the frequencies instructed.
- If this is for your own personal investment, your debit will be considered a Personal PAD under Rule H1. If this is for business purposes, it will be considered a Business PAD under Rule H1.
- If this is for a one-time or sporadic PAD request, only a one-time PAD is authorized. Your authority is to remain in effect until the one-time PAD is completed, at which time this PAD agreement will automatically terminate.
- You acknowledge that for a one-time PAD, your PAD agreement is no longer valid once the payment has been fulfilled. Any subsequent one-time PAD request requires you to enter into a new PAD agreement.
- If this is for a set interval PAD, your authority will remain in effect until Invesco Canada has received written or verbal notification from you of any change or termination. This notification must be received at Invesco Canada via mail or phone at least two (2) business days before the next debit is scheduled. A sample cancellation form and additional information is available by visiting www.payments.ca. Invesco Canada may also cancel this PAD without notice.
- You have certain recourse rights if any debit does not comply with this PAD agreement. For example, you have the right to receive reimbursement for any debit that is not authorized or is not consistent with this PAD agreement. To obtain more information on your recourse rights, you may contact Invesco Canada or visit www.payments.ca
- You confirm that all persons whose signatures are required to authorize transactions in the bank account(s) provided have signed this PAD agreement. You may change these instructions or cancel your PAD agreement at any time, provided that Invesco Canada receives at least two (2) business days' notice by phone or by mail. Please consult Invesco Canada to see if this may be reduced or waived. To obtain a copy of a cancellation form or for more information regarding your right to cancel a PAD agreement, please visit the Payments Canada website at www.payments.ca. You agree to release Invesco Canada of all liability if the revocation is not respected, except in the case of gross negligence by Invesco Canada. Invesco Canada may cease issuing your PAD agreement in accordance with Rule H1.
- Invesco Canada is authorized to accept changes to this PAD agreement from your registered dealer or your financial advisor in accordance with the policies of that company and with the disclosure and authorization requirements of Payments Canada.
- You agree that the information in this PAD agreement will be shared with your bank or financial institution, insofar as the disclosure of this information is directly related to and necessary for the proper application of the rules applicable for pre-authorized debits.
- You acknowledge and agree that you are fully liable for any charges incurred if the debits cannot be made due to insufficient funds or any other reason for which you may be held accountable.
- If you are a resident in Québec, you confirm that you have been provided a copy of this PAD Agreement in French and have expressly requested to enter into this PAD agreement exclusively in English. You expressly agree that this PAD agreement and all related documents, including notices, will be exclusively in English. Si vous êtes un résident du Québec, vous confirmez qu'une copie en français du présent accord de DPA vous a été remise et que vous avez expressément demandé de conclure le présent accord de DPA, qui est exclusivement en anglais. Vous convenez expressément que le présent accord de DPA et tous les documents connexes, y compris les avis, seront rédigés exclusivement en anglais.

Invesco

c/o IFDS
30 Adelaide Street East, Suite 1
Toronto, Ontario M5C 3G9

Telephone: 1.800.874.6275
Facsimile: 1.800.631.7008

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